

Annexure N- Follow Up Communication with Builder - Proof of continued attempt update address and receive project status, demonstrating Builder's wilful ignorance current contact details despite documented requests, thereby invalidating purport notices under Rule 7(3) of UP RERA Rules, 2017 which requires service at the "last known address or email ID of the allottee."

From: Neeraj Vohra (neerajvohra2004@yahoo.com)

To: joni@newtechgroup.co; crm@newtechgroup.co

Date: Thursday 24 August, 2017 at 08:19 pm IST

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Date: 23-Aug-2017
Neeraj Vohra
4S/403, AWHO GURJINDER VIHAR GREATER NOIDA
UP-201310

> Mr. Sanjeev Kumar
> Managing Director,
> M/s Newtech Promoters and Developers Private Limited
> Newtech La Galaxia
> Plot No.: HRA-11, Surajpur Site C (Extension), Phase II,
> Greater Noida UttarPradesh-201306

> Subject: AWAITING POSSESSION OF FLAT AND PAYMENT OF COMPENSATION DUE TO DELAY IN POSSESSION

> Sir,

> 1. I, Neeraj Vohra S/O Shri Vijay Kumar Vohra, have been allotted unit no.F-1103 at your La-Galaxia project sited at PlotNo.HRA-11, Group Housing Sector Surajpur

> Site-C (Extension), Phase-II, Greater Noida, under CLP from Corporation Bank and during booking time it was promised by Mr. Sanjeev Kumar that La-Galaxia project is going ahead of schedule and we will be able to offer possession before completion of two years i.e. April 2014.

> 2. It is further to your kind notice that as per Para19 (a) of the Allotment cum Buyer

> Agreement signed between Mr. Sanjeev Kumar, as director/authorized signatory on behalf of Aashiyana Promoters and Developers Private Limited and Self on 27th OCT 2012 at La-Galaxia Site Greater Noida, that you shall complete the construction/Development of Flat within 30 months from the date of starting of excavation/signing of Agreement, which may vary for ± 6 months. It is also mentioned in Para19(c) of the Allotment cum Buyer agreement, signed on 27th OCT 2012, that "In case of delay in Construction of the Flat for reasons other than force majeure condition, the developer shall Pay a sum at the rate of Rs5/- (Rupees five only) per sq. ft. Of super area per month for the delayed period which shall include of any/all damages, compensation, claims for delayed possession".

> 3. As per Notification No.1438_Eight-3-16-65 Vividh16 dated 27th October 2016, Uttar Pradesh has notified the Uttar Pradesh Real Estate (Regulation and Development) Rules, 2016 which is available on website of National Real Estate Development Council

> (NAREDCO) under the link of Govt.Notifications/Circulars. As per Chapter1 Para2 (h) of the rules the "Ongoing Project" means a project where development is going on and for which completion certificate has not been issued. This implies that the project of "La Galaxia" comes under the ambit of RERA.

> 4. As per Allotment cum Buyer Agreement signed on 27th OCT 2012 at La-Galaxia Site Greater Noida, it is approx. 5 years have passed after signing the said agreement.

> Hence, you are liable to pay @ 24% per annum of total cost of the project as the same is supposed to be Charge on me due to delay of payments.

> 5. I have already paid almost the complete amount to you on time and applicable interest to the bank. I am required to pay an EMI of Rs. 31,000 each month for the home loan. I am struggling to manage money to pay hefty EMI/Rent/Child Fees/Monthly utilities. All this is causing me a lot of financial burden and mental agony.

> 6. From the past two years false promises of possession have been made and all committed date of possession were breached leading to financial and mental instability. It is requested to provide a firm date of possession of flat in written. Also pay the penalty amount for the delayed period that have passed and continue the penalty each month in future till the possession of flat is provided.

> 7. I would like to emphasize that on failing to communicate the possession date in written and payment of delayed penalty amount as per RERA I will be forced to initiate a legal action against the company.

> Yours sincerely,
> Neeraj Vohra
> F-1103



LaGalaxia -site.pdf
131.3 kB



LaGalaxia-corp.pdf
131.7 kB

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SP KNOWLEDGE PARK-I (201310)

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Counter No:2, OP-Code:012

To: SANJEEV KR, MD

IA SURATPUR, PIN:201306

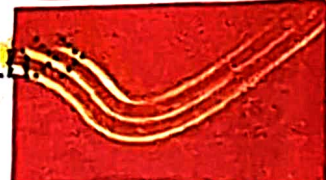
From: NEERAJ, GR NOIDA

Wt:20grams, 25/08/2017, 12:53

Amt:18.00EDD(If not a holiday):00:00:00

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